

**CHAPTER cxlviii.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Royal Burgh of Rothesay. [11th August 1903.] A.D. 1903.

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Rothesay Corporation Order Confirmation Act 1903. Short title.

A.D. 1903.

S C H E D U L E.

ROTHESAY CORPORATION.

*Provisional Order to make further provision for the improvement
and good government of the Royal Burgh of Rothsay.*

WHEREAS the royal burgh of Rothsay in the island of Bute (hereinafter referred to as “the burgh”) is much resorted to by visitors for purposes of health and recreation :

And whereas for many years past the provost magistrates and councillors of the burgh (hereinafter referred to as “the Town Council”) have expended money arising from local assessments in contributing towards and maintaining a public band of music and in constructing and laying out promenades and gardens on the foreshore of the burgh :

And whereas doubts have arisen as to the power and authority of the Town Council to expend the said money on the purposes aforesaid and it is expedient to remove such doubts and to confer upon the Town Council full power and authority to expend money on those purposes and on other similar purposes :

And whereas the office of town clerk of the burgh is now vacant and it is expedient that provision should be made with respect to the appointment of a town clerk and his tenure of office :

And whereas it is expedient to make other provisions for the health and good government of the burgh :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title.

1. This Order may be cited as the Rothsay Corporation Order 1903.

Power to
make pro-
menades.

2. The Town Council may upon any land or foreshore vested in them erect construct and maintain promenades and works connected therewith.

3. The Town Council may in any park open space promenade pleasure ground or place of public resort or recreation vested in them or under their control—

A.D. 1903.

Bands of
music and
pavilions &c.

(A) Reclaim any waste ground :

(B) Erect pavilions shelters bandstands or similar buildings and give the use of the same to the public or to givers of entertainments at such charges as they may fix and may also let out any part of such buildings as shops stalls or restaurants :

(C) Provide music by bands concerts or otherwise :

(D) Set apart and lay out any reasonable portion thereof for any game and make such charges as they may fix for persons or clubs using such portion :

(E) Set apart any reasonable portion thereof as a children's playground and provide gymnastic or other apparatus therefor.

4. The Town Council may defray any expenses incurred by them under the two immediately preceding sections of this Order out of any assessment applicable to the acquisition or maintenance of public parks open spaces pleasure grounds or places of public resort or recreation.

Expenses of
bands and
promenades
&c.

5. The Town Council shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Town Council shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals.

Works be-
low high-
water mark
not to be
commenced
without con-
sent of Board
of Trade.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Town Council and the amount of such costs and charges shall be a debt due from the Town Council to the Crown and shall be recoverable as a Crown debt or summarily.

A.D. 1903. 6. If any litter or ashes or any carrion fish offal or offensive
Throwing rubbish from any boat steamboat or other vessel be laid or thrown
ashes &c. into the harbour of Rothsay the person in charge of such boat
from vessels. steamboat or other vessel shall be liable to a penalty not exceeding
forty shillings for each offence and such penalty may be recovered
in the same manner as penalties are recoverable under the Burgh
Police (Scotland) Act 1892.

Collection and removal of burgh refuse. 7. Section 109 of the Burgh Police (Scotland) Act 1892 shall
in its application to the burgh be read and have effect so as to
authorise the Town Council to exercise the powers conferred upon
them by the said section of shutting up or removing any ashpit in
any street or district in the burgh upon instituting in such street
or district a regular service for the collection and removal of the
burgh refuse on not less than two days in the week in lieu of the
daily service prescribed by the said section.

As to office of town clerk. 8. The following provisions shall apply to the office of town
clerk of the burgh :—

- (1) Every person appointed to the office of town clerk after
the passing of the Act confirming this Order shall hold
office during the pleasure of the Town Council or during
such period as may be fixed in any agreement made or to be
made between the Town Council and such person and upon
such terms and conditions as the Town Council may from
time to time determine and shall be paid for his personal
services and in respect of the duties devolving upon him by
virtue of his office or under any resolution of the Town
Council a salary to be fixed by the Town Council and such
salary may from time to time be raised or reduced by and
at the pleasure of the Town Council No person appointed
to the office of town clerk shall be removed from office
except by the votes of not less than two thirds of those
members of the Town Council who shall be present at a
meeting of the Town Council specially called for the purpose
by a circular addressed to the members of the Town Council
not less than seven nor more than fourteen days before the
date of such meeting All fees and emoluments pertaining
to the office of town clerk or claimable in respect of the
duties which any town clerk may perform may in the option
of the Town Council be charged collected and accounted for
as hereinafter provided :

- (2) The Town Council may require the town clerk to act as law agent parliamentary solicitor clerk and secretary of the Town Council or in any one or more of such capacities in relation to all or such parts of the business of the Town Council and of all or any trusts local authorities courts boards or commissions now existing or which may hereafter be created in connection with the Town Council or in which the Town Council may be interested as they think proper from time to time to entrust to such town clerk and also in relation to all or any trusts foundations and mortifications which the provost magistrates or councillors of the burgh or any section of them administer or may from time to time be called upon to administer or the Town Council may appoint other persons to act in any of such capacities or to perform all or any part of such business All fees and emoluments payable for the services of the town clerk as such law agent parliamentary solicitor clerk or secretary as the case may be or payable in respect of the services of any deputy or assistant town clerk and other persons employed on the establishment and staff of the town clerk's office may be charged collected accounted for and applied as hereinafter provided :
- (3) The Town Council may if they so resolve establish a fund to be called the town clerk's fee fund and the burgh chamberlain or other person to be appointed by the Town Council shall be treasurer of the said fund which shall be under the control and management of the Town Council and all fees and emoluments pertaining to the office of town clerk or which are or may be payable to the town clerk by custom or statute and all the fees and emoluments referred to in subsection (2) of this section and also all costs charges and disbursements recoverable from third parties and recovered (the right of recovering such costs charges and disbursements in proceedings between the Town Council and third parties being in no respect prejudiced by this Order) shall be charged and collected by the town clerk or other person to be appointed by the Town Council for the purpose and shall be paid over to such treasurer at such times and in such manner as the Town Council may from time to time determine and shall be placed to the credit of the said fee fund Provided always that it shall not be necessary unless the Town Council otherwise resolve to

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make out accounts for or to charge and collect from any department of the Town Council any fees or emoluments which may be payable by such department to the town clerk or may pertain to his office :

- (4) If and when the said fee fund is established the burgh chamberlain or other such person shall apply the moneys of the said fee fund in paying the salary of the town clerk and all disbursements and payments made or incurred in connection with and for the proper equipment of the town clerk's office as the Town Council shall direct and if the same be insufficient the Town Council shall allocate the deficiency against all or any of their several funds and assessments as they think proper but if there be any surplus of the said fee fund in any year after satisfying the said purposes and the other purposes of this section such surplus shall be placed to the credit of such of the funds departments and assessments of the Town Council as they think proper.

Fractions
of a pound
not to be
reckoned in
assessing.

9. In assessing levying and collecting all rates and assessments imposed by the Town Council under any Act any fractional part of a pound exceeding ten shillings shall be reckoned as one pound of rateable rent or value and any fractional part less than ten shillings shall not be taken into account.

Costs of
Order.

10. The costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid out of any assessment levied by the Town Council or out of the common good of the burgh.

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T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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